

Court No. - 29

Case :- WRIT - C No. - 47031 of 2016

Petitioner :- M/S S.R. Preservation Pvt. Ltd.

Respondent :- State Of U.P. And 3 Othrs.

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar Agarwal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

Heard learned counsel for the parties.

The petitioner has been issued a letter dated 16.09.2016 directing him to pay a sum of Rs. 17,99,548/-. This figure was arrived at by the respondents after adjusting a sum of Rs. 7,65,000/-, which the petitioner had paid through R.T.G.S.

The contention of the petitioner is that he had also deposited a sum of Rs. 2 Lacs and another sum of Rs. 12 Lacs by cash on 09.02.2016 and 27.06.2016, which has not been adjusted. Copy of the receipts have been filed as Annexure-6 to the writ petition.

Petitioner contends that the aforesaid amount of Rs. 14 Lacs is also required to be adjusted, which has not been done.

Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department states that he may be allowed to seek instructions in the matter.

Put up this matter on Monday i.e. 03.10.2016.

In the meanwhile, the petitioner will deposit a sum of Rs. 4 Lacs within 48 hours. If the same is deposited, the electricity will not be disconnected till the next date of listing.

Order Date :- 28.9.2016

Sandeep

(Vipin Sinha, J.)

(Tarun Agarwala, J.)

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By an order dated 20.01.2016 passed in Writ C No. 1279 of 2016, the Court had directed the petitioner to move an application under Clause 6.5 of the U.P. Electricity Supply Code, 2005 for correction of the bill. The petitioner moved an application based on which a final bill was prepared dated 23.02.2016, which indicates that the petitioner had deposited an excess amount of Rs. 2,69,216.50/-. The petitioner moved an application dated 08.09.2016 praying that a final bill may be given to him so that the excess amount would be refunded to the petitioner. On the basis of this letter, the impugned demand notice has been issued directing the petitioner to pay a sum of Rs. 17,99,548/-. The petitioner, being aggrieved, has filed the present writ petition contending that only a sum of Rs. 7,65,000/- has been adjusted whereas two payments of Rs. 12 Lacs and Rs. 2 Lacs deposited on cash dated 09.02.2016 & 27.06.2016 have not been adjusted.

By order dated 28.09.2016, the Court directed the petitioner to deposit a sum of Rs. 4 Lacs, which has been done.

On the other hand, learned counsel for the Electricity Department Sri Baleshwar Chaturvedi states that they have received another representation dated 27.09.2016 for correction of the bill, which would be looked into and the cash deposit made by the petitioner would also be looked into and the same, if paid, would be adjusted.

We, accordingly, dispose of the matter directing the Executive Engineer to pass a reasoned and speaking order on the application of the petitioner within two weeks intimating the petitioner as to how much amount is payable or refundable.

Till the disposal of the petitioner's application, the demand notice dated 16.09.2016 shall remain in abeyance.

Order Date :- 3.10.2016
Sandeep

(Vipin Sinha,J.) (Tarun Agarwala,J.)